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4 KOSTIANTYN MARS, PRO SE

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6 **SUPERIOR COURT OF CALIFORNIA**

7 **COUNTY OF SANTA CLARA**

8
9 THE PEOPLE OF THE STATE OF
CALIFORNIA,

10 Plaintiff,

11 vs.

12 KOSTIANTYN MARS,

13 Defendant.

) Case No.: B2402220

)
) **MOTION TO DISMISS CRIMINAL CASE**
) **B2402220**
) **(Penal Code §§ 1004 and 1385)**

)
) **DATE:**
) **TIME:**
) **DEPT:**

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17 **MOTION TO DISMISS CRIMINAL CASE B2402220**
18 **(Penal Code §§ 1004 and 1385)**

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20 Defendant Kostiantyn Mars respectfully moves this Court to dismiss Criminal Case No.
21 B2402220 with prejudice.

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23 **I. INTRODUCTION**

24 The criminal prosecution is based solely on an alleged violation of a Domestic Violence
25 Restraining Order dated November 28, 2023. That order is **void ab initio**.

II. LEGAL BASIS

1. The DVRO was signed by Judge Andrea Flint after a timely Statement of Disqualification was filed against her on November 13, 2023 (CCP § 170.4(d)).
2. A void order has no legal force and cannot support a criminal charge (Penal Code § 273.6).
3. The charging document fails to state a public offense (Penal Code § 1004).
4. Dismissal is warranted in the furtherance of justice (Penal Code § 1385).

III. FACTUAL RECORD

The evidentiary record is set forth in the attached Declaration of Kostiantyn Mars and Exhibit A (Criminal Evidence Binder).

IV. RELIEF REQUESTED

Defendant respectfully requests that the Court:

1. Dismiss Criminal Case B2402220 **with prejudice**.
2. Quash and expunge all related warrants and records.
3. Grant such other and further relief as the Court deems just and proper.

Respectfully submitted,

DATED: April 8, 2026


KOSTIANTYN MARS
Pro Se